FICTIONAL TRAINING MATERIAL. All parties, events, contract terms and document excerpts below are invented. This is not a filed case, legal advice or a statement of Ghanaian law. No judgments are included.

1. Matter Intake and Client Instructions

Parties and background

The prospective client is Example Health Logistics Ltd (EHL), a fictional medical-distribution business operating a storage facility in Kumasi. The opposing party is Example Cooling Systems Ltd (ECS), a fictional equipment supplier based in Accra. EHL seeks advice about a contract for six cold-storage units for medicines requiring storage between 2 and 8 degrees Celsius.

On 12 May 2026, the parties signed a supply and installation agreement for GHS 480,000. EHL paid a 60% deposit of GHS 288,000 on 14 May. The remaining GHS 192,000 has not been paid. The signed agreement required delivery and commissioning by 30 June 2026. ECS had received EHL's email stating that the facility was scheduled to start operations on 1 July.

Client's account

EHL says four units arrived on 4 July and the remaining two on 18 July. It alleges that two units subsequently failed to maintain the agreed temperature range. EHL reports hiring temporary storage for GHS 15,000 and disposing of medicines it values at GHS 48,000. The documents supplied do not yet independently establish the cause, value or necessity of every alleged loss.

EHL sent a formal notice on 10 August and a termination letter on 27 August. It still has all six units and continues to use four. ECS disputes the termination and demands payment of the balance. No court proceedings have been filed in this fictional scenario.

Instructions to the reviewing lawyer

Assess the parties' contractual obligations, the effect of the delivery delay and alleged defects, the disputed cure opportunity, and the basis for withholding payment or terminating. Identify relevant Ghanaian authorities from the available legal library and explain material similarities and differences. Consider both favourable and adverse arguments without assuming either party's account is established.

The client would consider repairs and a negotiated price reduction. Alternatively, it wishes to explore whether termination, repayment and compensation are supportable, including what must happen to retained equipment. It prioritises continuity of medicine storage and avoiding unnecessary litigation.

2. Extracts from the Fictional Agreement

Scope, delivery and payment

Clause 2 - Scope: 'The Supplier shall supply, install and commission six cold-storage units capable of maintaining 2 to 8 degrees Celsius under the specified operating conditions. The price includes six compatible voltage stabilisers, installation and operator training. Site rewiring and standby generation are excluded.'

Clause 4 - Completion: 'Delivery, installation and commissioning shall be completed by 30 June 2026. Any revised completion date shall be agreed in writing by both parties.' No mutually signed variation has been supplied. A supplier email requested extra time; the client's response acknowledged receipt without expressly accepting a new date.

Clause 5 - Payment: 'Sixty per cent is payable on execution. The balance is payable within seven days after commissioning and signature of the acceptance certificate by the Customer.' ECS supplied commissioning worksheets, but neither party has produced an acceptance certificate signed by EHL.

Site conditions, defects and cure

Clause 7 - Site conditions: 'The Customer shall provide an accessible installation site and power supply meeting the Supplier's written specifications. The Supplier shall inspect the site before installation and notify the Customer in writing of any deficiency.' A pre-installation visit is recorded, but the signed inspection report and power specifications are missing.

Clause 9 - Defects: 'The Supplier shall investigate notified defects promptly. A party alleging material breach shall give written notice identifying the breach and allow fourteen days after receipt to remedy it before termination. The Customer shall provide reasonable access for remedial work.' The agreement does not define material breach or reasonable access.

Liability and disputes

Clause 11 - Liability: 'Aggregate liability under this agreement shall not exceed the contract price. Neither party shall be liable for indirect or consequential loss, except in cases of fraud or wilful misconduct.' The parties dispute how this wording applies to temporary storage, spoiled stock and continued equipment use. Its legal effect has not been determined.

Clause 14 - Disputes: 'This agreement is governed by the laws of Ghana. The parties shall attempt a management-level meeting within fourteen days of a written dispute request before commencing proceedings, subject to any urgent relief available.' No management meeting has yet occurred.

3. Chronology and Document Excerpts

May to July 2026

12-14 May: Agreement signed and GHS 288,000 deposit paid. A bank confirmation supports the payment. On 6 May, before signature, EHL had notified ECS of its planned 1 July opening. On 20 June, ECS emailed requesting an extension because of shipment delays. EHL replied: 'We have received your update. Our opening arrangements remain unchanged.'

4-18 July: Four units were delivered on 4 July; delivery notes record the other two on 18 July. EHL's 9 July email states: 'Unit 2 repeatedly exceeds the agreed range. Please inspect urgently.' ECS attended on 15 July. Its unsigned service note records power interruptions and recommends checking site wiring. It does not record a completed temperature test.

18-24 July: EHL's internal logs record readings between 9 and 12 degrees for Units 2 and 5. ECS questions the logger calibration and says power interruptions caused the excursions. Installation records confirm four stabilisers; installation of the other two is disputed. An internal disposal note dated 24 July lists medicines valued at GHS 48,000 but has no independent inspection or disposal certificate.

August 2026

10-12 August: EHL sent a letter headed 'Notice of Breach and Request to Remedy', identifying late delivery, unstable temperatures and disputed stabiliser installation. It requested remedial work within fourteen days of receipt. A courier record shows delivery at ECS's office on 12 August. ECS disputes whether the notice supplied enough technical detail, but acknowledges office receipt.

20-24 August: ECS proposed a repair visit for 20 August at 10 a.m. EHL says access during medicine handling was unsafe and offered entry after 5 p.m. that day or on 24 August. ECS says it could not provide an evening visit and that the alternative date required confirmation. The available email chain does not establish whether either alternative was finally agreed.

27 August: EHL sent a termination letter demanding repayment of its deposit and compensation, while proposing that ECS collect the equipment after an agreed replacement arrangement. ECS replied that it had not received a reasonable opportunity to complete repairs.

September 2026

2-5 September: ECS demanded GHS 192,000, stating that the units had been commissioned and four remained in use. EHL rejected the demand, citing the unsigned acceptance certificate, alleged defects and claimed losses. EHL's finance team supplied a GHS 15,000 temporary-storage invoice, but payment evidence and the dates of actual storage use remain outstanding.

4. Competing Positions and Evidence Gaps

EHL's proposed position - allegations, not findings

EHL maintains that the agreed completion date mattered because ECS knew the opening date; delivery was late; two units were defective; and the remaining payment condition was never satisfied. It says its written notice and access proposals gave ECS an adequate opportunity to remedy the problems. It seeks advice on possible withholding, repair, price reduction, termination, repayment and compensation arguments.

EHL accepts that four units remain in use and that site power problems occurred. It has not established whether equipment defects, missing stabilisers, power conditions, handling practices or another cause produced the temperature excursions. It needs advice on preserving evidence, reducing further losses and accounting for any benefit from continued equipment use.

ECS's proposed position - allegations, not findings

ECS argues that commissioning occurred, EHL's continued use supports its payment demand, and the failures resulted from site power outside its responsibility. It says EHL obstructed the proposed remedial visit and terminated prematurely. It also relies on the contractual liability wording to contest parts of the loss claim. ECS has not supplied complete power specifications, a signed site inspection, a signed acceptance certificate or complete stabiliser installation records.

Material still required

Obtain the complete signed agreement and schedules; all variation correspondence; the site inspection and written power specifications; serial numbers, commissioning and stabiliser records; operator-training records; original temperature data and calibration certificates; an independent technical assessment; the complete remedial-access correspondence; and evidence concerning whether an acceptance certificate was requested or refused.

Obtain stock purchase and valuation records, batch and expiry details, disposal evidence, temporary-storage payment/use records and evidence of steps taken to limit loss. Confirm the units' present condition and use, each party's settlement proposals and any management-meeting request. Dates and obligations extracted by AI require lawyer confirmation.

Expected research output

Produce a neutral factual summary, disputed issues and missing-evidence list. Search only available permitted Ghanaian authorities, cite the exact supporting passages, distinguish relevant judgments and identify evidence-dependent legal approaches. If the library has no relevant authority, state that limitation rather than inventing a case or presenting a definitive outcome.